The Family Asset Protection Checklist

What to list, look up and ask about while Dad is managing fine.

Dad is managing fine, and nothing has to be settled. You've started to wonder how his house and savings would be treated if he ever needed long-term care, and nobody in the family has a full list of what he owns. Check what you've done, at your family's own pace. Anything unchecked is something to get to when it's convenient. It says nothing about how any of it would be treated.

List

- [ ] Dad's home and any other real estate, with the address of each.
- [ ] Cash and savings: checking and savings accounts and certificates of deposit, with where each one is held.
- [ ] Investments and retirement accounts, each on its own line.
- [ ] Insurance policies and annuities, with the company that issued each.
- [ ] Anything else of value: vehicles, personal property, a share in a business.
- [ ] Today's date at the top of the list, and the names of the people who put it together.

Look up

- [ ] Whose name is on the deed to the home, as the deed itself reads.
- [ ] Whose name is on each account: Dad's alone, joint with a spouse, or joint with someone else.
- [ ] The named beneficiary on each retirement account, insurance policy and annuity, from the form or a statement instead of from memory.
- [ ] Whether Dad has a trust, and whether anything on the list is held in its name.

Ask about

- [ ] Your questions about how the home, savings, retirement accounts and insurance may be treated in Dad's state, written down for your Medicaid planner.
- [ ] Your legal questions, on their own list for an elder law attorney, including what estate recovery is and how it works in Dad's state.
- [ ] Your financial questions, on their own list for a licensed financial professional.
- [ ] Any change the family has talked about, such as a gift, a name added to an account or a different deed, written as a question to ask before anything changes. [1]

What this checklist doesn't do

It helps you list, look up and ask. It doesn't tell you which of Dad's assets may be protected, how any of them would be treated, or whether anything should change. Rules vary by state and change, and those answers come from a professional who knows Dad's state. Nothing here is legal, financial or tax advice.

Ready for the next step?

You've listed what Dad owns, looked up whose name is on it and written down what to ask. The planning interview asks about your family's situation in order, including the parts a list doesn't reach, and gives you a free planning report you can bring to any conversation about paying for care.

Get Your Free Planning Report ›

WHERE THIS COMES FROM

The item marked 1 follows the Consumer Financial Protection Bureau's guide for older homeowners, which says to seek advice from legal and tax professionals about transferring property. The rest come from the Medicaid Planning Roadmap's own working list for this step.

1. Consumer Financial Protection Bureau, Leaving your home to children or heirs (Older Americans Housing Guide)